

29, 2022, the parties entered into a Second Amendment that extended the lease term to March 31, 2031, restructured a tenant improvement loan of \$187,076.92 at six percent interest with a 96-month repayment period commencing April 5, 2023, and provided an early termination option. (UMF Nos. 9, 11-12; Strauss Decl., ¶¶ 10, 12-13; Exh. 3, ¶¶ 2.b, 2.d, 2.e, 1.06.) Both Peterson and Renee guaranteed the Second Amendment. (UMF No. 13; Strauss Decl., ¶ 14; Exh. 3, p. 3.)

Beginning in January 2025, Defendants breached the Lease, First Amendment, and Second Amendment by failing to pay rent, CAM charges, and tenant improvement loan installments. (UMF No. 14; Strauss Decl., ¶ 15.) Defendants vacated the property on May 16, 2025. (UMF No. 15; Strauss Decl., ¶ 16.) Brentwood re-let the property on June 1, 2025, for a term of two years. (UMF No. 16; Strauss Decl., ¶ 17.) At that point, unpaid rent totaled \$44,957.37 and unpaid CAM charges totaled \$9,292.14. (UMF Nos. 17-18; Strauss Decl., ¶¶ 17-18; Exhs. 1-3.) Brentwood applied the security deposit, reducing the rent balance to \$34,963.65 and the CAM balance to \$6,194.76. (UMF No. 20; Strauss Decl., ¶ 21; Exhs. 1-3.) The outstanding tenant improvement loan balance is \$150,050.38, plus six percent interest accruing from March 1, 2025. (UMF No. 19; Strauss Decl., ¶ 19; Exhs. 1-3.)

This evidence carries Plaintiff's initial burden of proof with respect to the breach of contract cause of action. It shows the existence of the parties' lease agreement and amendments thereto, Defendants' obligation to pay rent, CAM charges, and tenant improvement loan installments, Defendants' default beginning in January 2025, and resulting damages. The burden thus shifted to Defendants to demonstrate the existence of triable issues of material fact as to any of these elements.

Defendants did not oppose the motion and therefore have not met that burden.

Disposition

Summary judgment is **granted**. Plaintiff shall e-file a proposed order, attaching this ruling, and judgment within 10 days and shall serve and file notice of entry of same.

15. 9:00 AM CASE NUMBER: MSC20-01311
CASE NAME: MICHAEL PRICE VS. STARLIGHT MARINE SERVICES, INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

Summary

Plaintiff Michael Price and Douglas Anderson and the Proposed Class ("Plaintiffs") filed a Motion for Final Approval of Class Action Settlement ("Motion") against Defendant Starlight Marine Services, Inc. ("Defendant") as described herein. The Motion is **granted**. No appearance is required at the June 17, 2026 hearing. A hearing on Plaintiff's Motion for Final Approval of Attorney's Fees is calendared for November 25, 2026

Background

Plaintiffs Michael Price and Douglas Anderson filed a wage and hour class action against Starlight Marine Services, Inc. on July 16, 2020, alleging violations including failure to pay wages and overtime, failure to provide meal breaks, and violations of the California Labor Code and Business & Professions Code. The plaintiffs also pursued claims under the Private Attorneys General Act (PAGA). Following

class certification on August 22, 2024, the Court recognized three subclasses: a Meal Period Subclass, an On-Call Subclass, and a Waiting Time Subclass, comprising captains employed in California during specific periods. The class notice process concluded on October 28, 2024, with only two individuals opting out.

The settlement class includes all captains employed by Starlight Marine Services in California who worked shifts exceeding five hours from July 16, 2016, through February 15, 2021, excluding those who opted out. The class consists of 26 members who worked a total of 2,376 workweeks. The PAGA period covers July 16, 2019, through February 15, 2021. Defendant denies all liability and wrongdoing, contending it complied with California labor laws and that plaintiffs' claims are preempted by federal maritime statutes.

The parties reached a settlement agreement after unsuccessful mediation in June 2022 and subsequent months of negotiations following the class certification ruling. The settlement provides a gross amount of \$280,000, which is non-reversionary. This amount covers class representatives' enhancement awards, administrative costs, PAGA payments, and distributions to class members.

The settlement allocates \$20,000 total in enhancement awards to the named plaintiffs (\$10,000 each), \$3,250 for claims administration fees to Phoenix Class Action Administration Solutions, and \$15,000 for PAGA payments. Of the PAGA payment, \$11,250 goes to the Labor and Workforce Development Agency, while \$3,750 remains in the net settlement amount. After these deductions, the net settlement amount available for distribution to class members is \$245,500.

Individual class payments are calculated based on the number of compensable workweeks each class member worked during the class period. PAGA payments are determined based on the number of pay periods worked during the PAGA period, calculated as 25% of the PAGA payment divided by the total number of PAGA period pay periods worked by all aggrieved employees. The agreement includes a work week dispute resolution process for contested claims.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First,

public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiffs seek \$300,000 in attorney’s fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) The court defers ruling on the attorney’s fees until the hearing on November 25, 2026.

The requested representative payment of \$20,000 (\$10,000 for each plaintiff) is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined “risk” by doing so. Considering all the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**, except for attorney’s fees, which is scheduled for hearing on November 25, 2026 at 9:00 a.m.
2. Plaintiff’s Counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The proposed order shall attach a copy of this ruling.
3. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel is to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
4. No appearance is required at the June 17, 2026 hearing.